

Court No. - 10

Case :- WRIT - C No. - 9128 of 2016

Petitioner :- Parmeshwar Prasad

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Krishna Kumar Chaurasia

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Heard learned counsel for the parties.

Learned counsel for the petitioner states that there is no statutory provision applicable in the State of Uttar Pradesh, which provides for payment of compensation if injury or death is caused due to negligent act of the licensee defines under the Electricity Act, 2003 read with Electricity Supply Code, 2005.

We find that this writ petition has been filed without examining the provisions of Section 161 of the Electricity Act, 2003.

In view of the aforesaid, the writ petition is accordingly dismissed.

(Harsh Kumar, J.) (Arun Tandon, J.)

Order Date :- 3.3.2016

Ajeet